



File No.: EXP202312924

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (\*hereinafter, the claimant) on July 31, 2023, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against the individual identified as B.B.B. with NIF \*\*\*NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

The claimant states that they are a neighbor of the respondent and that the respondent has a video surveillance system in their home with cameras oriented outward, capable of capturing images of both the public road and the claimant's home, without prior authorization for doing so. They also point out that the cameras are not properly signposted with a notice informing about the data controller and the address to contact for the exercise of rights.

They provide images showing the location of the cameras (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on September 26, 2023, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. A reiteration of the was made to the indicated address on October 23, 2023, being returned by the Official Postal and Telegraph Service.

THIRD: On October 31, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On March 21, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent for the alleged infringement of Articles 5 and 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: Upon consulting the database of this AEPD, there is a record of a double attempt at notification by the Official Postal Service, with for its collection.

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On April 18, 2024, the procedure associated with PA/00073/2023 was published in the BOE in accordance with Article 44 of Law 39/2015 (October 1).

SIXTH: On June 26, 2024, collaboration was requested from the Local Police of the locality to verify the information required by this agency regarding whether the device(s) subject to the complaint comply with current legality.

SEVENTH: On July 11, 2024, this agency received a Report (Record) from the Security Forces and Corps—Local Police \*\*\*LOCALIDAD.1—informing in a timely manner as follows:

“The Local Police of this City Council, through this document and in response to the request from the Spanish Agency for Data Protection, regarding file no. (...) in which we are requested to collaborate to verify a video surveillance system, has the honor to inform:

On June 28, 2024, at 12:58, we visited the address of \*\*\*DIRECCION.1, where we interviewed Mr. C.C.C., with ID number: \*\*\*NIF.2 and contact phone \*\*\*TELÉFONO.1, and the following was verified:

- Presence of 3 video surveillance cameras, confirming that these cameras do not affect neighboring properties or public spaces.
- Existence of an informative sign warning that cameras are present. (Photo attached).

- Responsible for the cameras (...) with address at \*\*\*DIRECCIÓN.2 (Málaga).

- This person indicates that there is a neighborhood conflict.

In light of all the actions taken by the Spanish Agency for Data Protection in this proceeding, the following facts are considered proven,

#### PROVEN FACTS

First. The facts arise from the complaint dated July 31, 2023, through which the presence of video surveillance cameras that are not properly signposted according to current regulations is reported.

Second. It is established that the main responsible party is B.B.B., with NIF \*\*\*NIF.1.

Third. It is established that the respondent has an informative sign that does not comply with the requirements of current regulations, merely stating that it is a video-monitored area.

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Fourth. It is certified that the system does not affect the private areas of third parties and/or public areas, fulfilling a purpose of protecting the property.

#### LEGAL GROUNDS

I

##### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In the present case, the complaint dated 31/07/23 is examined, which states the following:

"presence of cameras that are directed at will towards private and/or public spaces of third parties affecting the right to privacy without being properly signposted" (page no. 1).

Article 5.1 c) of the GDPR provides the following: Personal data shall be:

"adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization').

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It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must include the mandatory information sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be directed towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause.

Furthermore, such devices cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Bodies, in accordance with the current Organic Law 4/1997, of August 4, which regulates the use of video cameras by the Security Forces and Bodies in public places.

It is important to remember that even in the case of a "simulated" camera, it must be preferably directed towards private space, as it is considered that such devices can affect the privacy of third parties, who may feel intimidated by the belief that they are subject to permanent recording. Individuals cannot install devices for capturing images of public space and/or the transit of third parties, except in cases permitted by the regulations.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the individual in such a way that they do not affect the areas of third parties who may feel intimidated by them, as they affect their free transit area.

### III

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide all the information indicated below at the time of obtaining such data:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;

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c) the purposes for which the personal data is intended to be processed and the legal basis for the processing;

d) when the processing is based on Article 6(1)(f), the legitimate interests of the controller or a third party;

e) the recipients or categories of recipients of the personal data, if applicable;

f) if applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time when the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;

b) the existence of the right to request from the controller access to personal data concerning the data subject, and its rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;

c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;

d) the right to lodge a complaint with a supervisory authority;

e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;

f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the controller intends to further process personal data for a purpose other than that for which

it was collected, it shall provide the data subject, prior to that further processing, information about that other purpose and any other relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

Article 22(4) of the LOPDGDD states: “The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An access code or internet address to this information may also be included in the informative device.”

#### IV

Article 83.5 of the GDPR states: “Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

b) the rights of data subjects under Articles 12 to 22;”

For the purposes of the limitation period for infringements, the infringement referred to in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is provided in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall be subject to a three-year limitation period: infringements that constitute a substantial breach of the articles mentioned therein, and in particular, the following:

(...)

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law.”

#### V

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2(b) of Article 58 “Powers” the following:

“Each supervisory authority shall have all of the following corrective powers:

(...)

b) to issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)”

Furthermore, Article 64 of the LOPDGDD, which regulates the “Form of initiation of the procedure and duration,” states in its third paragraph that:

“3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

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The procedure shall have a maximum duration of six months from the date of the initiation agreement. Upon the expiration of this period, it shall lapse, and consequently, the proceedings shall be archived. The provisions of the second and third paragraphs of section 2 of this article shall apply in this case.

#### VI

Conclusion

In accordance with the Report submitted by the Local Police (Villanueva del Trabuco), it has been confirmed that there is a video surveillance system at the indicated address; determining that the system in question does not capture public and/or private space of third parties, fulfilling its purpose of protecting the property and its belongings.

The system is informed, however, it is limited to informing only about without meeting the other legally required criteria, therefore the infringement of Article 13 of the GDPR, previously mentioned, is considered established.

## VII

### Adoption of measures

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

The summoned party must prove that the informative sign complies with current legislation (e.g., by providing a photograph with date and time).

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B. with NIF \*\*\*NIF.1, for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

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SECOND: TO ORDER B.B.B. with NIF \*\*\*NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 1 MONTH from the date this resolution becomes final and enforceable, to prove that they have complied with the following measure:

- To proceed to place an informative sign in accordance with current regulations, indicating the responsible party and how to exercise the right, through an effective address, providing a photograph with date and time.

THIRD: TO NOTIFY this resolution to Ms. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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